

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Plaintiff,

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

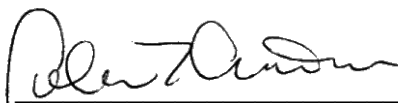
Index No. 600371/2021

**AFFIRMATION OF
GOOD FAITH**

JOHN N. CUOMO, an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following subject to the penalties of perjury.

1. I am the attorney for the Plaintiffs in this matter and as such, I am fully familiar with the facts and circumstances of the action at bar.
2. A good faith effort has been made to resolve the issue raise in the annexed Notice of Motion/Motion without the interventions of this Court.
3. By correspondence dated May 28, 2021 (annexed to the referenced motion as **Exhibit E**) a good faith effort was made for Defendant to respond to the outstanding discovery demands and to date Defendant Calvagno has failed to do so.

Dated: Commack, New York
July 15, 2021



John N. Cuomo
Attorney for Defendant
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